IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
COURT-I
(through hybrid mode)

Item No. 102

C.A.(CAA)/51(CH)2023
(1st Motion)

IN THE MATTER OF:

K S Nutritions and food private limited …Transferor Company

Under Section: 230-232, Sec 234, Companies Act, 2013

Order delivered on 19.01.2024

CORAM:
SH. HARNAM SINGH THAKUR **SH. L.N. GUPTA**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Petitioner : Mr. Kartikeya Goel with Mr. Rajeev K Goel, Advocates

ORDER

Learned counsel for the petitioner presented the petition which is for the first motion under Section 230-232 of the Companies Act 2013. He has shown the convenience chart on page 5 of the application which indicates that the consent of all the shareholders, secured creditors and unsecured creditors have been taken except for the unsecured creditors/transferor company which had been taken from the 7 secured creditors out of the total 9 having the value of 99.67 per cent. He also referred to the page no. 605 and 606 to show the calculation of percentage. However, the percentage of each of the creditors is not reflected on the same page. He undertakes to file an affidavit indicating the percentage of each of the creditors and indicate that they have taken the consent of 99.67 per cent of the unsecured creditors of the transferee company within three weeks. In pursuance of the last

order, learned counsel for the petitioner companies filed affidavit placing on record audited financial statements for all the applicant companies ending on 31.03.2023 vide Diary No. 03211/1 dated 15.01.2024. The same is taken on record.

List the matter on 16.02.2024.

Sd/-
(L.N. GUPTA)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

Tanvi